

(B) would, on balance, be contrary to the public interest.

- (2) A document is not an exempt document by virtue of this clause merely because it contains matter concerning the business, professional, commercial or financial affairs of the agency or other person by or on whose behalf an application for access to the document is made.
- (3) A document is not an exempt document by virtue of this clause if it is a contract entered into by the Crown or an agency after the commencement of this subclause.

9—Internal working documents

- (1) A document is an exempt document if it contains matter—
 - (a) that relates to—
 - (i) any opinion, advice or recommendation that has been obtained, prepared or recorded; or
 - (ii) any consultation or deliberation that has taken place in the course of, or for the purpose of, the decision-making functions of the Government, a Minister or an agency; and
 - (b) the disclosure of which would, on balance, be contrary to the public interest.
10. Under section 48, the onus is on the agency to justify its determination ‘in any proceedings’. This includes the external review process.
11. Section 39(11) provides that the Ombudsman may confirm, vary or reverse the agency’s determination in an external review, based on the circumstances existing at the time of review.

Documents in issue

12. The agency identified three documents within the scope of the application:
 - Document 001 - Simple Purchase Recommendation (access refused in full)
 - Document 002 - Request for Quote (released in full)
 - Document 003 - Tender Evaluations Weighted Attribute Analysis (access refused in full).

Issues in this review

13. I must consider whether the agency has justified its determination to refuse access to Documents 001 and 003.

Consideration

14. The applicant’s initiating FOI application was received by the agency on 4 October 2017
15. The agency did not determine the application within the 30 days required by the FOI Act, and was therefore deemed to have refused access to the requested documents.²
16. The applicant then made an application for an internal review of the deemed refusal, which was received by the agency on 18 January 2018.

² *Freedom of Information Act 1991*, section 19(2)(b).